INFINITY HIRE PRIVATE LIMITED
versus
MORESURFACE INVESTMENTS (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
COMMERCIAL DIVISION
MUSITHU J
HARARE, 26 May 2026 & 2 June & 24 June 2026

Default Judgment – request for reasons

T. Chiguvare, for the plaintiff
D. Choto, for the defendant

MUSITHU J:

[1] This matter was placed before the court as an application for default judgment. The defendant was served with the plaintiff's summons and declaration on 16 March 2026. The defendant entered appearance to defend on 30 March 2026. It was duly issued by the registrar on the same day. The defendant's plea was issued and filed on 31 March 2026. On 30 March 2026, the plaintiff applied for default judgment. The reason for the default was the defendant's failure to file its plea within the prescribed time. On 2 June 2026, I granted default judgment as follows.

> "1. The defendant having failed to file its plea or other answer to the plaintiff's claim within the time prescribed in terms of rule 12 (1) as read with rule 14(1) of the High Court (Commercial) Division Rules, 2020.
> 2. The defendant shall pay the sum of US$81,698.55 to the plaintiff.
> 3. The defendant shall pay interest to the plaintiff on the outstanding balance at the rate of 2.5% per month calculated from the date of the issuing of summons to the date of full and final payment.
> 4. The defendant shall pay collection commission on the above sum calculated in accordance with section 70 of the Law Society of Zimbabwe By-Laws 1982, and costs of suit on the legal practitioner and client scale to the extent that such costs are permitted in proviso (iii) to section 70(2) of the Law Society of Zimbabwe By-Laws."

[2] The defendant's legal practitioners have since written to the registrar requesting reasons for granting the default judgment. These are they.

[3] On 10 March 2026, the plaintiff issued summons out of this honourable court claiming against the defendant, payment of the sum of US$81,698.55 together with interest, costs of suit and collection commission. The claim arose pursuant to vehicle hiring services rendered by the plaintiff to the defendant from 8 January 2025 to 7 October 2025. In terms of

their arrangement, six vehicles were hired out to the defendant at varying daily rates. The vehicles were identified as follows:

(i) Toyota Fortuner D4D 2.5D (AFW 1572) 2014, Silver SUV Auto;

(ii) Toyota Hilux GD6 2.4D (AFX 5983) 2016, White Double Cab;

(iii) Isuzu D/Cab KB250 D/300 (AGT 1855), 2024 White Double Cab;

(iv) Mazda CX-5 2.0D (AFO 5202) 2013, Black Crossover Auto;

(v) Toyota Hilux D4D 3.0D (AES 6436) 2012, Silver Double Cab;

(vi) MazdaCX-5 2.0D (AGH 7291), White Crossover Auto.

[4] The hiring agreement was subject to terms and conditions which were that:

(i) The hiring of the vehicles was upfront and where payment was made after the service, the client was required to settle the outstanding amount within thirty days of the hiring invoice date;

(ii) Any outstanding balance beyond 30 days would attract an interest change of 2.5% per month from the hiring invoice date until the outstanding amount was cleared to manage the loss value arising from delayed payments.

(iii) That if the costs for replacement of damaged parts to the rental vehicle exceeds the amount of the security deposit, the renter shall pay the balance of the costs.

(iv) In the event of an accident or damage to the car the renter agreed to pay the insurance excess or any other amounts not covered by the insurance.

(v) In the event that the plaintiff instituted legal proceedings against the defendant, the defendant would pay costs of suit on an attorney and client scale including collection commission.

[5] When the vehicles were returned by the defendant, it was discovered that the vehicles had suffered some damages for which repairs were required. The plaintiff had the vehicles repaired at its own cost. The nature of the damages caused to the vehicles and relevant invoices confirming the repairs and the amounts paid for the repairs were attached to the plaintiff's papers. Also attached to the plaintiff's summary of evidence was a statement reflecting the payments made by the defendants, which totalled US$7,770.00 leaving an outstanding balance of US$81,695,55 (being the outstanding hiring fees and the cost of repairs), which is the subject of the plaintiff's claim herein. The record also showed that correspondence was exchanged between the parties in which the defendant did not dispute its indebtedness to the plaintiff.

[6] As already stated, what triggered the application for default judgment was the defendant's failure to file its plea within the period stipulated in the rules of this court. In terms of r 12 (1) of the High Court (Commercial Division) Rules, 2020 (the rules), the defendant shall file its plea within seven days of service of the plaintiff's summons and

declaration. Rule 14(1) provides that where any party required to file a plea fails to do so within the specified period, the court shall, upon proof of service and on application by the plaintiff, enter a default judgment in favour of the plaintiff.

[7] The defendant was served with summons and declaration on 16 March 2026. The seven days within which the plea ought to have been filed lapsed on 25 March 2026. The plea was issued and filed on 31 March 2026, some four days out of time. By that time, the defendant was already barred for failing to file the plea within seven days.

[8] Unlike the High Court Rules, 2021, which require the filing of a plea after an appearance is filed, the rules of the Commercial Division require that a plea must be filed first within seven days of the service of the plaintiff's summons and declaration. An appearance to defend is only filed within ten days from the date of service of the summons and declaration.

[9] Having noted that the defendant's appearance to defend was filed timeously while the plea was filed out of time, and in keeping with one of the fundamental tenets behind the establishment of the Commercial Division which is to expedite the resolution of business disputes, I invited the parties for a virtual case management meeting on 26 May 2026. The exchanges between the parties during the case management meeting showed that they were eager to settle the matter amicably.

[10] At the meeting, the plaintiff was represented by Ms *Chiguvare*, while the defendant was represented by Mr *Ranganayi*. Counsel requested more time to engage and file a deed of settlement and an order by consent. I postponed the matter to 2 June 2026 for further case management with the rider that if the parties managed to find each other and filed the deed of settlement and the order by consent, then there would be no need for them to appear on 2 June 2026.

[11] At the resumption of the hearing on 2 June 2026, the defendant was now being represented by a Mr *Choto*. The parties had failed to reach settlement. Mr *Choto* submitted that he had instructions to oppose the application for default judgment because the plea was properly before the court. He further submitted that in terms of court procedure, the plea could not be filed before an appearance to defend. The application for default judgment was therefore improperly before the court.

[12] I reminded Mr *Choto* that the only reason why the parties were before me was because I had invited them for a case management session to determine if the matter could not be resolved amicably because from my reading of the papers I had formulated the view

that if parties had an earnest engagement, then the matter could indeed be settled. In formulating that view, I was mindful of the fact that the granting of a default judgment would only trigger further litigation as chances were very high that the same court would be approached for the rescission of that default judgment. Further, the defendant had already filed an appearance to defend. The plea was filed out of time. That was a demonstration that there was an intention to defend the matter. An amicable resolution of the matter would have averted a scenario where the same matter would be recycled before the same court through the granting of the default judgment, followed by an application for its rescission thereby unnecessarily increasing the case backlog in the division.

[11] Mr *Choto* was adamant that the plea was properly filed and the application for default judgment was irregular. Ms *Chiguvare* on the other hand insisted that the defendant remain barred for default of plea and the application for default judgment was properly before the court.

[12] As already stated, the rules of this division are clear that a plea must be filed within seven days of service of the summons and declaration on the defendant. An appearance to defend is only filed after the filing of a plea. That is the law. The defendant was automatically barred the moment it failed to file the plea within the seven-day period stipulated in r 12(1) of the rules of the Commercial Division. A party that has been barred must approach the court for the removal of that bar in terms of the rules of court. The defendant did not file an application for condonation for the late filing of its plea, nor did it seek the upliftment of the automatic bar. The filing of a plea after the expiry of the prescribed period does not, by itself, remove the consequences of default. Until the bar is formally uplifted by the court, the party remains barred notwithstanding the filing of a pleading.

[13] Mr *Choto* sought to make oral submissions in opposition of the application for default judgment insisting that the plea was properly filed. In so doing, he was attempting to introduce a procedure which was alien to the rules of court. As I have already explained, I had only invited the parties for case management. The attempt to oppose the application for default judgment was therefore irregular. Having already been made aware that there was a pending application for default judgment, the defendant's counsel ought to have approached the court for the removal of the bar instead of seeking to oppose the application for default judgment in a case management session. No application for the removal of bar was made and the defendant remained barred. Further, once the default judgment was granted, the defendant

ought to have simply approached the court for rescission of that default judgment if it was so minded.

[14] In the final analysis, the defendant was duly served with summons, failed to comply with the mandatory time limits prescribed by the Commercial Division Rules, became automatically barred, and took no steps to seek condonation or upliftment of that bar. The plaintiff's claim was supported by documentary evidence establishing both the contractual relationship and the indebtedness claimed. In those circumstances, there existed no legal impediment to the granting of default judgment.

[15] It was for the foregoing reasons that the court granted default judgment in terms of the plaintiff's draft order as set out in paragraph 1 above. The defendant through its counsel was aware that there was a pending application for default judgment because of the late filing of the plea. It took no further steps to avert the granting of that default judgment by taking the necessary steps under the rules of court despite being aware that it was barred.

MUSITHU J: ……

Muvirimi Law Chambers, plaintiff's legal practitioners
IEG Musimbe & Partners, defendant's legal practitioners